

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 36-010
Amendments to Title 2, Chapter 4, Article B,
Sections 2-402.5, 2-402.6, and 2-402.7 of the Chickasaw Nation Code
(Judicial, Legislative, and Executive Department Salaries)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Tribal Legislature finds that a need exists for the review of salaries paid elected officials of the Chickasaw Nation every four (4) years in accordance with Amendment IV, Section 1 of the Constitution of the Chickasaw Nation, and

WHEREAS, the Legislature also finds that the four (4) year periods began in 1983; therefore, the salaries paid elected officials of the Chickasaw Nation must be reviewed in Fiscal Year 2019.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 2, Chapter 4, Article B, Sections 2-402.5, 2-402.6, and 2-402.7 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through). The effective date of the following amendments is October 1, 2019:

“SECTION 2-402.5 **JUDICIAL DEPARTMENT SALARIES.**

The salary of each Justice of the Supreme Court shall be the sum of ~~four thousand dollars (\$4,000)~~ **seven thousand (\$7,000) dollars** per month, plus a five percent (5%) increase to the salary for each year of service which has been completed as a Justice of the Supreme Court under the Constitution of 1983. In addition, annually, the Chickasaw Nation shall contribute an amount equal to ~~twenty-five percent (25%)~~ **thirty percent (30%)** of each Justice’s total annual salary to a retirement/investment plan, as directed by the Justice. The Justice that is elected to serve as Chief Justice shall receive an additional two hundred fifty (\$250) dollars per month for the duration of time in which he serves in that capacity.”

“SECTION 2-402.6 **LEGISLATIVE DEPARTMENT SALARIES.**

B. The salary of the Legislators shall be the sum of ~~five thousand dollars (\$5,000)~~ **nine thousand (\$9,000) dollars** per month, plus a five percent (5%) increase to the salary for each year of service which has been completed as a Tribal Legislator under the Constitution of 1983.

In addition, annually, the Chickasaw Nation shall contribute an amount equal to ~~twenty-five percent (25%)~~ **thirty percent (30%)** of the Legislator's total annual salary to a retirement/investment plan, as directed by the Legislator.

"SECTION 2-402.7

EXECUTIVE DEPARTMENT SALARIES.

A. The salary of the Lieutenant Governor shall be the sum of ~~four hundred thousand dollars (\$400,000)~~ **six hundred thousand dollars (\$600,000)** per annum, plus ~~fifty thousand dollars (\$50,000)~~ **a five percent (5%) increase to the salary** for each ~~term of office~~ **year of service** completed as Lieutenant Governor under the Constitution of 1983. In addition, annually, the Chickasaw Nation shall contribute an amount equal to thirty percent (30%) of the Lieutenant Governor's total annual salary to a retirement/investment plan, as directed by the Lieutenant Governor.

B. The salary of the Governor shall be the sum of ~~six hundred thousand dollars (\$600,000)~~ **one million, two hundred thousand dollars (\$1,200,000)** per annum, plus ~~fifty thousand dollars (\$50,000)~~ per annum for each term of office completed as **Lieutenant Governor and** Governor under the Constitution of 1983, **prior to October 1, 2019, plus a five percent (5%) increase to the salary** for each ~~term of office~~ **year of service completed as Governor thereafter**. In addition, annually, the Chickasaw Nation shall contribute an amount equal to thirty percent (30%) of the Governor's total annual salary to a retirement/investment plan, as directed by the Governor."

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on September 20, 2019, by a vote of 12 ayes, 1 nays, 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur:  Date: SEP 20 2019
Bill Anoatubby, Governor
The Chickasaw Nation

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Explanation:

This resolution approves and adopts amendments to Title 2, Chapter 4, Article B, Sections 2-402.5, 2-402.6, and 2-402.7 of the Chickasaw Nation Code. The changes to the Code will effectively change the compensation of elected officials in the Judicial, Legislative, and Executive Departments of the Chickasaw Nation.

Presented By:

Legislative Committee,
Chickasaw Tribal Legislature